

(See also *Amaro v. Anaheim Arena Mgmt., LLC*, *supra*, 69 Cal.App.5th 521.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutatory purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

C. Attorney fees

Plaintiff seeks \$45,000 as fees. Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval. Counsel are directed to provide a lodestar figure for any hearing on final approval.

Similarly, the requested representative payment of \$2,000 for plaintiff will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

D. Conclusion

Hearing required in order to schedule filing of a proper declaration. Counsel need to provide a declaration with respect to any relationship with the cy pres recipient in compliance with Code of Civil Procedure section 382.4. Subject to provision of such information the Court would find that the proposed settlement is sufficiently fair, reasonable, and adequate to justify preliminary approval.

If preliminary approval is granted, counsel will be directed to prepare an order reflecting this tentative ruling, the other findings in the previously submitted proposed order, and to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs’ counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney’s fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

8. 9:00 AM CASE NUMBER: C24-03434
CASE NAME: DANIEL OLEJNIK-ROLIZ VS. MARCO ANTONIO MEZA ORTEGA
HEARING ON SUMMARY MOTION JUDGMENT
FILED BY:
***TENTATIVE RULING**
Off calendar. Moving party was dismissed 12/18/25.

9. 9:00 AM CASE NUMBER: C25-00744
CASE NAME: SHELBY SIFERS VS. NBCUNIVERSAL MEDIA, LLC
HEARING ON DEMURRER TO: COMPLAINT